

24STCV18921 24STCV18921

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Case Number: 24STCV18921 Hearing Date: June 26, 2026 Dept: 316

BACKGROUND

This case

is a housing matter. Plaintiffs Mabelle Marquez and Shiela Romero allege that Defendants Sunwest Investment, Annie Wong, and Rudy Ramirez breached their signed lease agreement by failing to make necessary repairs in Plaintiffs' unit.

On July

30, 2024, Plaintiffs filed their original complaint against Defendants Sunwest Investment, Annie Wong, and Rudy Ramirez alleging eight causes of action:

(1) Breach of Contract; (2) Breach of Implied Warranty of Habitability/Tenantability; (3) Breach of Implied Warranty of Quiet Enjoyment; (4) Negligence; (5) Nuisance; (6) Constructive Eviction; (7) Breach of Statute; and (8) Retaliation.

On

February 6, 2025, the Court issued a Minute Order sustaining the demurrer to Plaintiffs' complaint.

On

March 7, 2025, Plaintiffs filed a first amended complaint ("FAC") against Defendants alleging the same eight causes of action.

On

March 10, 2026, Defendants Annie Wong and Rudy Ramirez filed a demurrer to Plaintiffs' FAC. Defendants also filed an accompanying Motion to Strike.

On

June 12, 2026, Plaintiffs filed an opposition.

On

June 18, 2026, Defendants filed a reply.

TENTATIVE

RULING

Defendants'

demurrer to Plaintiffs' first, second, third, and sixth causes of action is SUSTAINED.

Plaintiffs are granted leave to amend these causes of action only as they relate to Defendant Annie Wong.

Defendants'

demurrer to Plaintiffs' fourth, fifth, seventh, and eighth causes of action is OVERRULED.

Defendants'

motion to strike requests for punitive damages and attorney's fees in paragraphs 74, 106, 97, and 8 of the Prayer for Relief is DENIED.

LEGAL

STANDARD

"[A]

demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (See Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (See Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where

a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (See *ibid.*; see also *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245).²

DISCUSSION

I.

Meet
and Confer

Before

filing a demurrer or motion to strike, the demurring or moving party shall meet and confer with the party who has filed the pleading in person, by telephone, or by video conference. (Code Civ. Proc. § 430.41, subd. (a).) Furthermore, the demurring or moving party must file a declaration detailing their meet and confer efforts. (Code Civ. Proc., §§ 430.41, subd. (a)(3).) “The parties shall meet and confer at least 5 days before the date the responsive pleading is due.” (*Id.* at subd. (a)(1).) “A determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” (Code Civ. Proc. § 430.41, subd. (a)(4).)

Here, Defendants

met and conferred with Plaintiffs via telephone. (See *Graham Decl.*, ¶¶ 3, 5.) Therefore, the meet and confer requirement has been satisfied. (See Code Civ. Proc., § 430.41, subd. (a).)

II.

Contract-Based

Causes of Action: Causes of Action One through Three and Six.

The

Court finds that Plaintiffs have failed to plead that Defendants Wong or Ramirez are parties to the underlying lease agreement. Accordingly, the FAC fails to state any of the contract-based causes of action against either Defendant.

To

state a cause of action for breach of contract, a plaintiff must be able to establish “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.) “Breach of contract cannot be made the basis of an action for damages against defendants who did not execute it and who did nothing to assume its obligations.” (Gold v. Gibbons (1960) 178 Cal.App.2d 517, 519; see also Civ. Code, § 2337 [establishing that agent personally liable for breach of contract only when they intended to personally assume its obligations].)

Furthermore,

claims for breach of the implied covenant of quiet enjoyment, breach of the implied covenant of habitability, and constructive eviction all arise from a valid contract/lease agreement. (See Andrews v. Mobile Aire Estates (2005) 125 Cal.App.4th 578, 589-91 [stating that existence of lease agreement is an element for breach]; see also Quevedo v. Braga (1977) 72 Cal.App.3d Supp. 1, 5 [stating that breach can only occur in residential leases]; Groh v. Kover’s Bull Pen, Inc. (1963) 221 Cal.App.2d 611, 614 [stating that constructive eviction stems from premises being unfit for purposes for which it was leased].) Thus, if a defendant did not execute or assume the obligations of a contract, they cannot be held liable for any of these other claims.

Here, Plaintiffs

attached a copy of the lease agreement. (See FAC, Exh. A.) The only parties to sign the lease were Plaintiffs and Defendant Ramirez (acting as agent of Reno Street Apartments). (See id. at p. 6; see also FAC, ¶ 14 .) Defendant Wong did not sign the lease. (See *ibid.*)

Given

that Defendant Wong did not sign the lease, she cannot be held liable for breach of contract or any of the other accompanying causes of action. (See Gold v. Gibbons (1960) 178 Cal.App.2d 517, 519.) Furthermore, although Defendant Ramirez signed the lease, it was signed in his official capacity as an agent of Reno Street Apartments. (See FAC, Exh. A, p. 6.) Further, Defendant Ramirez did not sign the lease or assume its obligations in his individual capacity. (See Civ. Code, § 2337.) Therefore, Defendant Ramirez also cannot be held liable for

breach of contract or any of the other accompanying causes of action. (See Gold v. Gibbons (1960) 178 Cal.App.2d 517, 519.)

In

opposition, Plaintiffs contend that Defendant Wong is liable for breach of contract, and all other accompanying causes of action, because she is Defendant Sunwest's sole general partner. Thus, as general partner, she is jointly and severally liable for obligations of the partnership. (See Corp. Code, § 15904.04, subd. (a) ["[A]ll general partners are liable jointly and severally for all obligations of the limited partnership unless otherwise agreed by the claimant or provided by law."].) However, Plaintiffs fail to allege in the FAC that Defendant Wong is Defendant Sunwest's sole general partner. (See generally FAC.) Plaintiffs also fail to attach or request the Court take judicial notice of the grant deed allegedly demonstrating that Defendant Wong is Defendant Sunwest's sole general partner. (See Opposition, p. 4:17-19.) Without any clear allegations, the Court cannot hold that Plaintiffs have pleaded that Defendant Wong is Defendant Sunwest's sole general partner.

Plaintiffs

also contend that Defendant Wong is liable for breach of contract, and all other accompanying causes of action, because she is doing business as Reno Street Apartments (i.e., a party to the lease). However, Plaintiffs acknowledge that Reno Street Apartments is not a fictitious business name, but rather an individual legal entity. This is evident by Plaintiff naming Reno Street Apartments as a defendant. (See FAC, ¶ 6.) Plaintiffs cannot have it both ways – they cannot pursue an action against Reno Street Apartments in one instance but then claim it is simply a fictitious business name in another. Thus, Defendant Wong cannot be held personally liable for breach of contract or any other accompanying causes of action via Reno Street Apartments.

Plaintiffs

also contend that Defendant Ramirez is liable for breach of contract, and all other accompanying causes of action, because he signed the lease while serving as agent for Reno Street Apartments. (See Opposition, p. 5:18-19.) However, Plaintiffs do not refer to any case law establishing that an agent is personally liable simply because they signed the contract. In fact, if an agent is acting with proper authorization, all contractual obligations flow to the principal, not the agent personally. (See Civ. Code, § 2330.) Further, an agent is personally responsible for contractual obligations only when such intent is clear from the contract itself. (See id. at § 2337.) Defendant Ramirez's

intent to personally assume the obligations of the lease is nonexistent. (See FAC, Exh. A.) Therefore, Defendant Ramirez cannot be held personally liable for breach of contract or any other accompanying causes of action. (See Civ. Code, § 2330.)

In sum, Plaintiffs have failed to plead that Defendant Wong or Defendant Ramirez are parties to the underlying lease. Accordingly, causes of action one through three and six fail against each of them. For this reason, the demurrer to Plaintiffs' first, second, third and sixth causes of action against Defendants Wong and Ramirez is SUSTAINED.

i.

Leave
to Amend

The

Court will not grant Plaintiffs leave to amend these causes of action as it relates to Defendant Ramirez. Defendant Ramirez cannot be held liable as an agent nor does the lease itself demonstrate his intent to personally assume the underlying obligations. Thus, any attempts to amend would be futile.

The

Court will, however, grant Plaintiffs leave to amend these causes of action against Defendant Wong. The Court finds there is a reasonable possibility that Plaintiffs can successfully address the defect against that defendant.

III.

Breach
of Statute (Civil Code Section 1942.4): Cause of Action Seven.

The

Court holds that Plaintiffs have alleged that Defendants were issued and served the Notice to Abate and that the specified conditions were not abated thirty five days beyond the date of the notice and there was no good cause for delay. Therefore, the FAC successfully states a cause action.

Civil

Code section 1942.4 states:

A landlord of a dwelling may not demand rent, collect rent, issue a notice of a rent increase, or issue a three-day notice to pay rent or quit . . . if all of the following conditions exist prior to the landlord's demand or notice:

(1) The dwelling substantially lacks any of the affirmative standard characteristics listed in Section 1941.1 or violates Section 17920.10 of the Health and Safety Code, or is deemed and declared substandard as set forth in Section 17920.3 of the Health and Safety Code . . .

(2) A public officer or employee who is responsible for the enforcement of any housing law, after inspecting the premises, has notified the landlord or the landlord's agent in writing of his or her obligations to abate the nuisance or repair the substandard conditions.

(3) The conditions have existed and have not been abated 35 days beyond the date of service of the notice specified in paragraph (2) and the delay is without good cause . . .

(4) The conditions were not caused by an act or omission of the tenant or lessee in violation of Section 1929 or 1941.2.

Defendants

contend "there is no allegation that any Defendants were served with a notice following the date it allegedly was issued." (Demurrer, p. 13:21-23.) However, the FAC alleges that "Civil Code Section 1942.4(a)(2) is satisfied because LAHD inspected the Premises and issued and served Defendants a notice to abate the substandard conditions." (FAC, ¶ 92.) The alleged Notice to Abate is attached to the complaint. (See id. at Exh. B.) Thus, the Court finds that Plaintiffs have sufficiently alleged the elements of this cause of action. Therefore, Defendants' demurrer to the seventh cause of action is OVERRULED.

IV.

Improper
Demurrer

The

Court finds that Defendants have improperly demurred to the fourth, fifth, and eighth causes of action.

Code

of Civil Procedure section 430.41, subdivision (b) states, "A party demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained shall not demur to any portion of the amended complaint, cross-complaint, or answer on grounds that could have been raised by demurrer to the earlier version of the complaint, cross-complaint, or answer."

Here, Defendants

demurred only to Plaintiffs' first, second, third, sixth, and seventh causes of action in their demurrer to the original complaint. (See Oct. 3 Demurrer, p. 3.) Defendants did not demur to the fourth, fifth, or eighth causes of action. (See *ibid.*) Now Defendants demur to Plaintiffs' fourth, fifth, and eighth causes of action. (See Demurrer, pp. 3-4.) This is prohibited.

Defendants

had an opportunity in their first demurrer to address any perceived defects in Plaintiffs' fourth, fifth, and eighth causes of action. They chose not to raise these issues at the time. Therefore, Defendants cannot now demur to these causes of action after the complaint has been amended. (See Code Civ. Proc., § 430.41, subd. (b).) For this reason, the demurrer to the fourth, fifth, and eighth causes of action are **OVERRULED**.

V.

Motion

to Strike

Defendants

request the Court strike Plaintiffs' request for punitive damages in paragraphs 74 and 106. However, given that neither the fourth nor eighth causes of action are subject to demurrer, the corresponding request for punitive damages shall not be stricken.

Defendants

also request the Court strike Plaintiffs' request for attorney's fees in paragraph 97 and paragraph 8 of the Prayer for Relief. Given that the seventh cause of action is not subject to demurrer, the corresponding request for attorney's fees in paragraph 97 shall not be stricken. Furthermore, given that the fourth and fifth causes of action are not subject to the demurrer, the corresponding request for punitive damages in paragraph 8 of the Prayer for

Relief shall not be stricken.

Lastly,

Defendant requests the request the Court limit Plaintiffs' request for attorney's fees in paragraph 8 of the Prayer for Relief as it relates to all other causes of action. While the lease caps attorney's fees at \$500 (see FAC, Exh. A, ¶ 24), this cap does not apply to causes of action based on Civil Code section 1942.4. For this reason, the motion to strike the request in paragraph 8 for fees is denied.

CONCLUSION

For

the foregoing reasons, Defendants' demurrer to Plaintiffs' first, second, third, and sixth causes of action is SUSTAINED. Plaintiffs are granted leave to amend these causes of action only as they relate to Defendant Annie Wong.

Defendants'

demurrer to Plaintiffs' fourth, fifth, seventh, and eighth causes of action is OVERRULED.

Defendants' motion to

strike requests for punitive damages and attorney's fees in paragraphs 74, 106, 97, and 8 of the Prayer for Relief is DENIED.